

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

PETITION FOR EXPUNGEMENT OF ADULT RECORD

Petitioner Bartholomew Nkemdirim Vandergrift-Ashworth Jr.	ATTORNEY GENERAL New Castle County
Street Address (including Apt) 2604 Old Capitol Trail, Building 7, Unit 219	820 N. French Street Wilmington, DE 19801
P.O. Box Number Box 2407	Kent County 102 W. Water Street Dover, DE 19904
City/State/Zip Code Wilmington, DE 19808-4417	Sussex County 114 East Market Street Georgetown, DE 19947
DOB 1949-01-30	Telephone # (302) 555-0138 ext. 22
Email Address bvandergrift@example.test	
Attorney Name	
Interpreter needed? ☒ Yes ☐ No	
Language Spanish	

Crim. Case No. N19-11-0032-01
Civil Petition No.

Pursuant to 10 *Del. C.* § 1025 and 11 *Del. C.* § 4374, Bartholomew Nkemdirim Vandergrift-Ashworth Jr. (Petitioner), hereby petitions Family Court for expungement of the following case(s), and the charge or set of charges related to that case(s), from his or her criminal record. Each charge is listed separately below; any additional charges are listed on Form 281E.

Case ID # or Criminal Case #	Charge	Offense Date	Disposition Date	Disposition
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-01-14	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-03-22	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-07-09	2016-03-18	Dismissed
N19-11-0032-01	Theft; 11:841; misdemeanor	2015-11-02	2016-03-18	Dismissed

The following information MUST be completed for the Court to consider the petition

☐ The continued existence and possible dissemination of criminal records relating to Petitioner causes, or may cause, circumstances which constitute a manifest injustice to the Petitioner.

You must explain how the Petitioner is negatively affected by the continued existence and possible dissemination of the criminal records (attach additional pages if necessary):

WHEREFORE, Petitioner requests that this Court enter an Order directing:

- That all law-enforcement agency records and court records relating to the above referenced case(s), and the charge or set of charges related to that case(s), be expunged and removed from the files and placed in the control of the supervisor of the State Bureau of Identification as provided for in 11 *Del. C.* § 4372(e)(1).
- That copies of this Court's Order be delivered to the Petitioner, the Delaware Department of Justice, and the State Bureau of Identification, pursuant to 11 *Del. C.* § 4372(e)(1).
- That the Department of Justice and the Courts of the State of Delaware take appropriate steps to see that all records not destroyed pursuant to this Order be handled in such a manner as to ensure that such records not be open to the public inspection or disclosure.
- That it shall not be necessary for the Petitioner to disclose that he or she was arrested, charged, or convicted in the above reference case(s), and the charge or set of charges related to that case(s), for any reason except as provided under 11 *Del. C.* § 4376(a).

The Petitioner hereby declares that the above information is true and correct to the best of his or her ability.

Petitioner's Signature

Sworn to and subscribed before me this _____ day of _____, _____

Clerk of Court/Notary Public

Date

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

Petitioner
Bartholomew Nkemdirim Vandergrift-Ashworth Jr.
Street Address (including Apt)
2604 Old Capitol Trail, Building 7, Unit 219
P.O. Box Number
Box 2407
City/State/Zip Code
Wilmington, DE 19808-4417

File No.

The charges listed below are a continuation of the Petitioner's list of charges on the Petition for Expungement of Adult Record to which this form is attached.

[illegible]

Delaware Family Court — Form 281 packet assembly sheet

Discretionary expungement of an adult record · 11 Del. C. § 4374(c)

What this sheet is

This is an assembly and completion sheet for the official Family Court Form 281. It is not a court form, a filing, legal advice, or an approval. The official Form 281 remains the primary filing. The source's county boxes, manifest-injustice assertion, Civil Petition No., signature and jurat remain blank for the person or court who owns them.

Components in these fixtures

1. `de_discretionary_family_court-primary-filing-1`: Form 281, Petition for Expungement of Adult Record. 2. `de_discretionary_family_court-cover-sheet-3`: this required assembly sheet. Form 281E (`de_discretionary_family_court-continuation-2`) is bound as the exact continuation source but is conditional: attach it only when charges exceed the table on the petition. The boundary fixture exercises charge overflow and delivers Form 281E after the petition; the canonical fixture needs no continuation.

Before filing

Obtain the certified criminal history dated within 45 days through Identigo, service code 27S23V, at about \$72; the court shall summarily reject a petition without it. Do not assume the packet confirms eligibility. Complete the charge list from that history, confirm every charge and conviction sought was disposed of in Family Court, use the county of the most recent termination, complete the manifest-injustice explanation in your own words, and sign and swear the petition before a clerk of court or notary.

Fee and handoff

Set by each court under § 4374(j). Whether Family Court adult petitions carry the same \$75 fee is unresolved. If an outstanding fine or fee is unpaid for reasons other than wilful noncompliance and you are otherwise eligible, the court may grant expungement and waive the fines or fees or convert them to a civil judgment. Serve the Attorney General as required by the current record. If the Attorney General objects, a victim opposes, the court sets a hearing, or a required fact is contested, stop self-help completion and obtain case-specific help.

Held facts

Fixture boundary carries the participant name, date of birth, street address, city/state/ZIP, telephone, criminal case number and supplied charges shown on the official forms. The source records and exact source bytes govern this packet; no court-assigned date, civil number, fee amount, signature or approval is invented.